EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

DECISION

Application no. 56702/10
Hasan DENİZ against Turkey
and 12 other applications
(see list appended)

The European Court of Human Rights (Second Section), sitting on 8 December 2015 as a Committee composed of:

Paul Lemmens, *President,*
Ksenija Turković,
Jon Fridrik Kjølbro, *judges,*

and Abel Campos, *Deputy Section Registrar,*

Having regard to the above applications lodged on the dates indicated in the appendix,

Having regard to the formal declarations accepting a friendly settlement of the cases,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

A list of the applicants is set out in the appendix. They were all represented by Mr Ö. Türkdoğan, a lawyer practising in Ankara. The Turkish Government ("the Government") were represented by their Agent.

Relying on Articles 6, 11 and 13 of the Convention, the applicants alleged that they were given a disciplinary penalty for taking part in a demonstration and complained further of a lack of a domestic remedy to challenge the impugned disciplinary measures.

On 5 August 2015 and 17 August 2015 the Court received friendly settlement declarations signed by the parties under which the applicants agreed to waive any further claims against the respondent State in respect of the facts giving rise to these applications against an undertaking by the Government to pay *ex gratia* to each of them 500 euros (five hundred euros)

to cover any pecuniary and non-pecuniary damage and EUR 1,100 (one thousand one hundred euros) for costs and expenses, which will be converted into the national currency of the respondent State at the rate applicable on the date of payment, and will be free of any taxes that may be applicable. It will be payable within three months from the date of notification of the decision taken by the Court. In the event of failure to pay this sum within the said three-month period, the Government undertook to pay simple interest on it, from the expiry of that period until settlement, at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points. The payment will constitute the final resolution of the cases.

THE LAW

Given that the applications at hand concern the same facts and complaints and raise identical issues under the Convention, the Court decides to join them, pursuant to Rule 42 § 1 of the Rules of the Court.

The Court takes note of the friendly settlement reached between the parties. It is satisfied that the settlement is based on respect for human rights as defined in the Convention and its Protocols and finds no reasons to justify a continued examination of the applications. In view of the above, it is appropriate to strike the cases out of the list.

For these reasons, the Court, unanimously,

Decides to join the applications;

Decides to strike the applications out of its list of cases in accordance with Article 39 of the Convention.

Done in English and notified in writing on 7 January 2016.

Abel Campos
Deputy Registrar

Paul Lemmens
President

APPENDIX

No	Application No	Lodged on	Applicant Date of birth Place of residence	Represented by
1.	56702/10	30/07/2010	**Hasan DENİZ** 01/01/1979 Adana	Öztürk TÜRKDOĞAN
2.	65791/10	15/10/2010	**Doğan Ali USLU** 08/03/1962 Samsun	Öztürk TÜRKDOĞAN
3.	65795/10	15/10/2010	**Orhan KADEMAĞAOĞLU** 20/07/1969 Samsun	Öztürk TÜRKDOĞAN
4.	39243/11	16/03/2011	**Sevil ESER** 31/03/1975 Muğla	Öztürk TÜRKDOĞAN
5.	39246/11	16/03/2011	**Nursel KARATAŞ** 03/11/1964 Muğla	Öztürk TÜRKDOĞAN
6.	40190/11	16/03/2011	**İsmet KIRBABA** 01/03/1955 Muğla	Öztürk TÜRKDOĞAN
7.	43206/11	16/03/2011	**Fatma KARAKUŞ** 02/10/1967 Muğla	Öztürk TÜRKDOĞAN
8.	43213/11	16/03/2011	**Hatice YILMAZ** 01/01/1966 Muğla	Öztürk TÜRKDOĞAN
9.	43216/11	16/03/2011	**Gürbüz ÇETİNKAYA** 14/09/1975 Muğla	Öztürk TÜRKDOĞAN
10.	43221/11	16/03/2011	**Alime EKİZ** 03/09/1961 Muğla	Öztürk TÜRKDOĞAN
11.	43222/11	16/03/2011	**Fatma ERGİN** 15/01/1974 Muğla	Öztürk TÜRKDOĞAN

No	Application No	Lodged on	Applicant Date of birth Place of residence	Represented by
12.	43223/11	16/03/2011	**Nevin GÜRKAN** 05/10/1973 Muğla	Öztürk TÜRKDOĞAN
13.	43226/11	16/03/2011	**Ayşen SARI** 01/01/1975 Muğla	Öztürk TÜRKDOĞAN